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City and County of San Francisco

Appellate Division

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People of the State of California, *Plaintiff and Respondent*, v. **Andrew Enriquez,** *Defendant and Appellant.*	No. APP-24-8800 Super. Ct. No. 24000063

Appeal from judgment of conviction
Superior Court of California, City and County of San Francisco
Hon. Braden C. Woods

[PROPOSED] APPELLANT'S SUPPLEMENTAL OPENING BRIEF

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INTRODUCTION

Mr. Enriquez's trial was continued past its last day three times throughout 2023 and 2024. He moved to dismiss the case on speedy trial grounds. The prosecution offered no evidence in support of good cause, and conceded that dismissal was appropriate. The trial court nevertheless refused to dismiss the case.

That was an abuse of discretion, as the Court of Appeal held in *Mendoza v. Superior Court* (2024) 103 Cal.App.5th 865. It is the prosecution's burden to prove that good cause existed for a continuance. When it declines to do so, a trial court cannot step into the prosecution's shoes and attempt to justify the delay. (*Id.* at p. 871.) This error prejudiced Mr. Enriquez, because he was entitled to a dismissal that would have barred retrial, but was instead forced to go to trial and suffer a conviction. Reversal is thus necessary.

STATEMENT OF ADDITIONAL FACTS

On February 15, 2023, Mr. Enriquez was arraigned on a misdemeanor complaint charging him with driving under the influence of alcohol, driving with a blood alcohol content of 0.08% or more, and driving without a license. (CT 6–7, 13.) On June 14, 2023, he withdrew his general time waiver, and the trial court set July 14, 2023 as his last day for trial.

On July 14, 2023, the trial court continued the trial to October 16, 2023. (CT 32.) It entered a five-page order finding good cause for the continuance based on the COVID-19 pandemic. (CT

27–31.) In a footnote, the order purported to take judicial notice of "all findings and orders" of the Governor, the Mayor, the Chief Justice, and various other government officials, as well as its own "facilities" and "operating procedures." (CT 27.) It then drew on these records to find a series of facts about staff shortages associated with the pandemic. (CT 28–31.)

On October 16, 2023, the trial court continued the trial to December 1, 2023 and set a new last day of December 11, 2023, relying on its previous good cause finding. (CT 33.)

On December 1, 2023, the trial court continued the trial to March 5, 2024. (CT 39.) It entered a new good cause order that was identical to the one issued previously. (CT 34–38.)

On February 26, 2024, Mr. Enriquez filed a motion to dismiss on speedy trial grounds. (CT 56–72.) The motion pointed out that all COVID-19 emergency orders had been rescinded by July 2023, and argued that the trial delays were caused by chronic congestion. (CT 57–70.) It also argued that the good cause orders were insufficient because they were unsupported by evidence and relied on an improper use of judicial notice. (CT 69–70.)

On February 28, 2024, the prosecution filed a memorandum in response. (CT 73–79.) It stated that it did not have any evidence to support the claim that the trial delay was justified. (CT 74–76.) It conceded that dismissal was appropriate under Penal Code section 1382. (CT 77.)

On March 19, 2024, Mr. Enriquez filed a renewed motion to dismiss on speedy trial grounds. (CT 87–103.) The motion

incorporated a set of exhibits filed in a separate case. (CT 87.) In a separate order, the trial court deemed those exhibits filed.[1]

On April 3, 2024, Mr. Enriquez's case was assigned to trial. On the same day, the trial court entered a standard nineteen-page order rejecting the prosecution's concession and denying the motion to dismiss. (CT 136–154.) The order purported to take judicial notice of "all findings and orders" of the Governor, the Mayor, the Chief Justice, and various other government officials, as well as its own "facilities" and "operating procedures." (CT 137.) It again drew on these records to find a series of facts about the COVID-19 pandemic (CT 138–141), the effects of the pandemic on court operations (CT 141–144), the roles of "justice partners" (CT 144–150), and the measures that it had taken in response (CT 150–153).

After a jury trial, Mr. Enriquez was convicted on all counts. Judgment was entered on April 26, 2024. (CT 299.) Mr. Enriquez was ordered to serve three years' informal probation, including a condition that he serve ten days on the Sheriff's Work Alternative Program (SWAP) and pay various fines and fees. (CT 299–300.)

Mr. Enriquez filed a timely notice of appeal from the judgment. On July 1, 2024, this Court granted Mr. Enriquez's application for a stay of the SWAP condition and payment of fines and fees pending this appeal.

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[1] Mr. Enriquez has concurrently filed a request for judicial notice of these records.

ARGUMENT

I. Standard of review

If a defendant charged with a misdemeanor is not brought to trial within thirty days of the date that a general time waiver is withdrawn, the case must be dismissed unless good cause for the delay is shown. (Pen. Code, § 1382, subd. (a)(3)(A).) The prosecution bears the burden of showing that good cause existed, even when the continuance is on the court's own motion. (*Mendoza v. Superior Court*, *supra*, 103 Cal.App.5th at p. 870.) A trial court's order denying a motion to dismiss pursuant to Penal Code section 1382 is reviewed for abuse of discretion. (*Ibid.*)

To obtain reversal on appeal, a defendant must establish that the erroneous denial of his speedy trial motion caused prejudice. (*People v. Wilson* (1963) 60 Cal.2d 139, 152–153.) But this requirement is met when the case is a misdemeanor, and the dismissal would thus have barred retrial under Penal Code section 1387. (*Id.* at p. 153, fn. 5; *People v. Davisbragdon* (2023) 94 Cal.App.5th Supp 1, 7–8.)

II. The trial court erred by refusing to dismiss the case after the prosecution conceded that a speedy trial violation had occurred

The prosecution offered no evidence to justify the delays in holding Mr. Enriquez's trial throughout 2023 and 2024. Indeed, it conceded that dismissal was appropriate. Under these circumstances, the trial court abused its discretion by refusing to

dismiss the case. (*Mendoza v. Superior Court*, *supra*, 103 Cal.App.5th at p. 871.)

Mendoza controls this case. In that case—like this one—the trial court continued the defendant's trial for several months in 2023, relying on a standard order citing the COVID-19 pandemic as good cause. (*Id.* at pp. 867–868.) When the defendant filed a motion to dismiss, the prosecution—again, like here—declined to offer any evidence that the continuance was justified, and conceded that dismissal was warranted. (*Id.* at pp. 868–869.) The trial court denied the motion, filing a standardized nineteen-page order which purported to take judicial notice of "all" orders made by the Governor, the Mayor the Chief Justice, and other officials—once again, exactly like here. (*Id.* at pp. 869–870.)

The *Mendoza* Court held that this order was an abuse of discretion. (*Id.* at p. 871.) It noted that the prosecution had not attempted to meet its burden of offering evidence to justify the continuance, and had in fact conceded that no good cause existed; by denying the motion based on its own factfinding, the trial court went "beyond its proper judicial role" and "stepped into the shoes of the prosecution." (*Ibid.*) The Court added that, even if the prosecution had sought to rely on the facts which were listed by the trial court, the order would still lack any foundation, since it relied on an improper use of judicial notice. (*Id.* at pp. 871–872.) It explained that judicial notice does not extend to the *truth* of a document's contents (as opposed to its existence), does not extend to *disputed* facts, and cannot be taken without giving parties a prior opportunity to challenge the facts to be noticed. (*Id.* at pp.

871–872, fn. 3.) Since the court's order flouted these limits, the facts it contained were not a proper part of the record and could not be relied on. (*Id.* at p. 872.)

As in *Mendoza*, the trial court abused its discretion by refusing to dismiss this case. The prosecution offered no evidence justifying the trial delays, and conceded that dismissal was warranted. The trial court erred by taking on the prosecution's burden of marshalling evidence to defeat the motion to dismiss, and further erred by trying to use judicial notice to "conclusively establish facts about staff absences, COVID-19 exposures, and shortages of bailiffs and other court staff." (*Id.* at p. 871.)

Mendoza came up on pretrial writ review, whereas this case is on appeal after conviction. (*Id.* at p. 870.) But that difference does not matter, since Mr. Enriquez has demonstrated the prejudice that is necessary for reversal. Since he was charged only with misdemeanors, a dismissal would have meant that retrial would have been barred. (Pen. Code, § 1387, subd. (a).) The trial court's error deprived him of his right not to be further prosecuted for these offenses. Courts have held that this constitutes prejudice sufficient to trigger reversal. (*Wilson*, *supra*, 60 Cal.2d at p. 153, fn. 5; *Davisbragdon*, *supra*, 94 Cal.App.5th Supp. at pp. 7–8.) Mr. Enriquez is therefore entitled to a reversal of the judgment against him.

III. Conclusion

For these reasons, the judgment should be reversed.

October 10, 2024

Respectfully submitted,

/s/

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Oliver Kroll

/s/

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Steve Lau

WORD COUNT CERTIFICATE

I certify that this brief contains 1,528 words, not including the cover page, tables, signature block, and this certificate.

Executed on October 10, 2024, at San Francisco, California.

/s/

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Oliver Kroll